

in the original complaint or soon thereafter and it is unclear why the amendment was not sought earlier. The Wankens' current attorneys acted quickly in seeking to amend the complaint, but there is still unreasonable delay from September 2023 through November 2025.

Unreasonable delay alone is not enough to deny a motion for leave to amend. In order to deny leave to amend, there must also be prejudice. The contribution claim includes a new legal theory, but is based upon the same essential facts as the original complaint. Further, while the trespassing claim is new to the complaint, a similar issue regarding the footpath was already included in Droubi's cross-complaint where she alleges that the Wankens are interfering with her use of the path. Thus, the amendments are likely to result in little, if any, additional discovery, and they do not drastically change the scope of this case. Further, while trial is currently set to begin in April 2026, the Court has granted the Wankens' trial continuance and thus, there will be sufficient time to engage in motion practice related to these new claims. The Court finds that there is no prejudice to Droubi in allowing these amendments.

9. 9:00 AM CASE NUMBER: C23-02436
CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED CROSS-COMPLAINT**
FILED BY: DROUBI, NAHLA
TENTATIVE RULING:

Cross-Complainant Nahla Droubi's motion for leave to file a second amended cross-complaint is **continued to April 8, 2026**.

The Wankens opposed Droubi's motion for leave to amend, arguing that the motion does not comply with California Rules of Court, rule 3.1324(a)(2)-(3) and (b). Droubi's motion does not specify each proposed amendment by listing the page, paragraph, and line number where the additional allegations are located or providing a redline version of the complaint, which provides the same information. (Rule 3.1324(a)(3).) Further, Droubi's motion did not include the required declaration explaining (1) the effect of the proposed amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Rule 3.1324(b).) Compliance with these rules is mandatory.

Droubi shall file and serve a redlined version of the proposed second amended complaint showing all amendments and a declaration compliant with rule 3.1324(b) by March 18, 2025. The Wankens may file and serve an opposition by March 25, 2026. Droubi may file a reply by April 1, 2026.

10. 9:00 AM CASE NUMBER: C23-02445
CASE NAME: DARSHAN SINGH VS. RUDOLPH SANDOVAL
***HEARING ON MOTION IN RE: PROTECTIVE ORDER**
FILED BY: SANDOVAL, RUDOLPH VALENTINO
TENTATIVE RULING:

This hearing was **vacated** at the Case Management Conference on February 26, 2026 due to the